

**Calendar Line 6**

**Case Name:** *Brendan Patrick McCloskey v. City Of San Josse, et al.*

**Case No.** 25CV474909

**DEFENDANT’S MOTION TO DISMISS****Background**

Plaintiff filed this action on September 11, 2025. Plaintiff subsequently passed away later that month from an unrelated incident. Plaintiff's counsel has since withdrawn from the action. No personal representative or successor in interest has appeared, and no motion has been filed seeking to continue the action on Plaintiff's behalf.

Defendant City of San Jose represents that it provided notice to Plaintiff's mother concerning the status of the case. Defendant received no response.

**Analysis**

A pending action does not necessarily abate upon the death of a party. Code of Civil Procedure section 377.21 provides that "[a] pending action or proceeding does not abate by the death of a party if the cause of action survives." Section 377.20, subdivision (a), similarly provides that, except as otherwise provided by statute, a cause of action is not lost by reason of a person's death, but survives subject to the applicable limitations period.

Where a person who commenced an action dies, Code of Civil Procedure section 377.31 provides that, on motion, the Court shall allow a pending action that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest. Section 377.32 sets forth the requirements for a person seeking to act as the decedent's successor in interest, including the filing of the required declaration and a certified copy of the decedent's death certificate.

Thus, Plaintiff's death, standing alone, does not require dismissal. At the same time, the record reflects that Plaintiff has been deceased since September 2025, Plaintiff's counsel has withdrawn, and no person authorized to prosecute the action has come forward during the ensuing months.

The Court finds it appropriate to defer ruling on Defendant's motion to allow reasonable notice to persons who may have authority to continue the action and an opportunity for such person to seek continuation of the action pursuant to section 377.31.

California Rules of Court, rule 3.1342, which governs motions to dismiss for delay in prosecution, expressly permits the Court, where the circumstances warrant, to "continue or defer its ruling" pending performance of conditions necessary to effectuate substantial justice. The rule also directs the Court to consider all matters relevant to a proper determination, including the court's file, the nature of the case, the extent of any delay, and whether the interests of justice are best served by dismissal or continuation of the case.

Here, a continuance is appropriate. Plaintiff died shortly after filing the action, and Plaintiff's counsel has withdrawn. Although Defendant has attempted to notify Plaintiff's mother, there is no indication in the present record that Plaintiff's mother is Plaintiff's personal representative or successor in interest. The Court therefore finds it appropriate to provide a reasonable opportunity for any person with authority to act on Plaintiff's behalf to come forward before ruling on Defendant's request for dismissal.

Accordingly, the hearing on Defendant's Motion to Dismiss is CONTINUED to October 23, 2026.

Any person seeking to continue the action on Plaintiff's behalf should, before the continued hearing, file an appropriate motion pursuant to Code of Civil Procedure section 377.31 and comply with the requirements of section 377.32.

If no personal representative or successor in interest appears and takes appropriate steps to establish authority to continue the action by the continued hearing, the Court will consider Defendant's Motion to Dismiss on the record then before it.

### **Notice**

The **Clerk of the Court shall serve a copy of this order** on:

1. Plaintiff's former counsel of record;
2. Plaintiff's last known address as reflected in the court file; and
3. Plaintiff's parents, at the address provided to the Court or reflected in the court's records, if any. If the court file identifies a personal representative, executor, administrator, or other person claiming to be Plaintiff's successor in interest, the Clerk shall also serve a copy of this order on that person at the address reflected in the court's records.

Service of this order does not constitute a determination that such person is Plaintiff's personal representative or successor in interest. Any person seeking to continue the action must establish their authority in accordance with Code of Civil Procedure sections 377.31 and 377.32.

The hearing on Defendant's Motion to Dismiss is CONTINUED to October 23, 2026, at 9:00 a.m., in Department 12.

**Calendar Line 7****Case Name:** *Ramachandra v. Narasegowda et al.***Case No.:** 25CV375239**DEFENDANT’S MOTION TO STAY PROCEEDINGS AND MOTION FOR DECLARATORY RELIEF**

Defendant Surakshith Mysore Narasegowda moves to stay this partition action pending resolution of Plaintiff’s appeal from the judgment of the Family Court at Mysuru, India, and also seeks declaratory relief concerning the effect of the Indian proceedings on the parties’ rights in the California property.

**Motion to Stay**

A California court has inherent authority to stay proceedings in the interests of justice and judicial economy. Where an action involving the same parties and subject matter is pending in another jurisdiction, a stay is not a matter of right but rests within the trial court’s discretion. The Court considers, among other things, the importance of avoiding multiple litigation and conflicts between jurisdictions and whether the rights of the parties can best be determined in the other proceeding. (*Farmland Irrigation Co. v. Dopplmaier* (1957) 48 Cal.2d 208, 215.)

The Indian Family Court dissolved the parties’ marriage but expressly declined to adjudicate their rights in the California property. The judgment stated that Plaintiff would have to pursue separate proceedings concerning her claimed investment in the property after valuation and adjudication of the parties’ rights and liabilities.

This action, by contrast, seeks partition of real property located in California. Under Code of Civil Procedure section 872.710, the Court is to determine at trial whether a plaintiff has the right to partition, and partition of concurrent interests is generally a matter of right absent a valid waiver.

The pending Indian appeal concerns Plaintiff’s challenge to the denial of monetary/alimony relief. Defendant has not shown that the appeal will determine title to, partition of, or the parties’ ownership interests in the California property. Although the Indian proceeding and this action may involve some overlapping factual matters concerning the property and the parties’ financial contributions, that limited overlap does not establish that the Indian appeal will resolve the issues presented in this partition action.

Defendant’s concern regarding potential double recovery is likewise insufficient to warrant a stay on the present record. The possibility that a future Indian ruling could create an issue concerning monetary relief, credits, or offsets is speculative. The Court can adjudicate the parties’ respective interests in the California property and address the issues properly presented in this action. A stay would delay resolution of Plaintiff’s claimed interest in California real property without a demonstrated likelihood that the Indian appeal will resolve or materially advance the issues before this Court.

Accordingly, the Motion to Stay Proceedings is DENIED.